

1.

CASE #	CASE NAME	HEARING NAME
CVMV2511722	TRIVEDI VS CITY OF BEAUMONT	PETITION FOR ORDER RELIEVING PETITIONER FROM GOVERNMENT CLAIMS ACT

Tentative Ruling:

Any claim against a public entity for personal injury must be presented to the governmental entity within six months of accrual of the cause of action. (Gov. Code, § 911.2(a).) If a claim is not filed within the six-month claim presentation period, the claimant may apply to the public entity within a reasonable time, not to exceed one year after accrual, for leave to present a late claim. (Gov. Code, §§ 911.4(a)-(b).) Absent circumstances that would toll the late claim application period, a public entity is generally “powerless to grant relief” if the late claim application is made after the one-year period has expired. (*Hom v. Chico Unified School District* (1967) 254 Cal.App.2d 335, 339.) After denial, the claimant may file a petition for a court order relieving the claimant from the need to comply with Section 945.4. (Gov. Code, § 946.6.) “[T]he burden of showing ‘mistake, inadvertence, surprise or excusable neglect’ is on the moving party.” (Gov. Code, § 946.6(c); *Shaddox v. Melcher* (1969) 270 Cal.App.2d 598, 600.)

To obtain relief, “[t]he mere recital of mistake, inadvertence, surprise or excusable neglect is not sufficient to warrant relief. Relief on grounds of mistake, inadvertence, surprise or excusable neglect is available only on a showing that the claimant’s failure to timely present a claim was reasonable when tested by the objective ‘reasonably prudent person’ standard.” (*N.G. v. County of San Diego* (2020) 59 Cal.App.5th 63, 73-74.) Excusable neglect “is that neglect which might have been the act of a reasonably prudent person under the circumstances.” (*Id.*, at 74.) When relief is sought based on mistake, “it is not every mistake that will excuse a default, the determining factor being the reasonableness of the misconception.” (*Id.*) “A showing of reasonable diligence is required to establish that the petitioner acted as a reasonably prudent person. When excusable neglect is claimed based on ignorance of a fact or failure to act on it, a person seeking relief must show more than just failure to discover a fact until too late; or a simple failure to act. He [or she] must show by a preponderance of the evidence that in the use of *reasonable diligence*, he [or she] could not discover the fact or could not act upon it.” (*Id.*)

Here, Petitioner fails to show excusable neglect. The petition fails to include any supporting declaration, medical records, insurance or other investigation record, or any other evidence identifying when Petitioner learned of the later installed center divider or what he did during the initial 6 months. Petitioner therefore fails to satisfy his burden under section 946.6. Petitioner’s explanations are also insufficient to show mistake, inadvertence, surprise or excusable neglect. There is no showing of the required reasonable diligence to establish that the Petitioner acted as a reasonably prudent person to support relief from the claims presentation requirement.

As to the City's objections to the Petitioner's evidence, the Court sustains the City's objections insofar as petitioner offers the center divider to prove negligence, culpability, or a dangerous condition. The Court overrules the City's objections insofar as the allegation merely explains when petitioner suspected a claim. Yet, that limited use still does not show reasonable diligence on the Petitioner's part.

The petition is denied.

City of Beaumont is ordered to submit a proposed order consistent with this ruling by no later than August 5, 2026 and to provide notice of ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501056	ARREDONDO VS JURUPA UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL BY LINDA ARREDONDO

Tentative Ruling:

The court has previously continued the hearing on this motion to September 4, 2026, at 8:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507322	JARA VS COMMUNITY CARE REHAB CENTER, LLC	MOTION TO COMPEL ARBITRATION BY COMMUNITY CARE REHAB CENTER, LLC

Tentative Ruling:

C.C.P., § 1281 provides: "A written agreement to submit to arbitration an existing controversy or a controversy thereafter existing is valid, enforceable, and irrevocable, save upon such grounds as exist for the revocation of any contract."

C.C.P., § 1281.2 provides that upon petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate and a party's refusal to submit to arbitration, the court shall order the parties to arbitrate the controversy if it determines an agreement exists, unless it determines that the right to arbitrate has been waived, that grounds exist for revocation, or that a party to the agreement is also party to a pending litigation arising out of the same facts and there exists a possibility of conflicting rulings on a common issue of fact or law. In such a situation, the court may (1) refuse to enforce the arbitration agreement and order intervention or joinder of all parties in a single action, (2) order intervention or joinder as to all or only certain issues, (3) order